

UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

No. 19-15566

OPINION

Before: SMITH, Chief Judge, and NGUYEN and BADE, Circuit Judges.

The reasonableness of a particular use of force must be judged from the perspective of a reasonable officer on the scene, rather than with the 20/20 vision of hindsight. *Graham v. Connor*, 490 U.S. 386, 396 (1989).

Plaintiff alleges that officers used excessive force during a traffic stop. The district court denied qualified immunity. We affirm.

I. BACKGROUND

The record contains a photographic exhibit (Ex. 12) depicting the scene. At oral argument, the panel expressed skepticism regarding the officers' account of the encounter.

II. DISCUSSION

Government officials performing discretionary functions generally are shielded from liability for civil damages insofar as their conduct does not violate clearly established rights. *Harlow v. Fitzgerald*, 457 U.S. 800 (1982).

AFFIRMED.